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Attorneys for Defendants,

CSAA INSURANCE EXCHANGE,

CARBONE, SMITH & KOYAMA,

and MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

vs.

SUBHI ABDELHALIM; CSAA
INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF MOTION
TO STRIKE PLEADING**

(C.C.P. § 435 AND C.C.P. § 436)

DATE: May 22, 2026

TIME: 9:00 a.m.

DEPT: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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I. INTRODUCTION

Plaintiff's First Amended Complaint ("FAC") improperly seeks damages that are simply not recoverable as a matter of law, including monetary relief, restitution, prior litigation court costs, lost earnings, and even the underlying medical costs from his prior, underlying personal injury trial—which Plaintiff lost by defense verdict.

All these items of alleged damages arise from Plaintiff's underlying third-party litigation against a CSAA insured, where Plaintiff lost by defense verdict; hence, these alleged damages are unsupported by any statutory, contractual, or factual basis. Further, the FAC targets Defendants for their litigation conduct in that underlying jury trial; conduct which is absolutely privileged as occurring during a judicial proceeding. Under Code of Civil Procedure § 436, the Court is authorized to strike any irrelevant, improper, or nonconforming matter from a pleading. Because the deficiencies in Plaintiff's damages claims appear on the face of the FAC and cannot be cured by amendment, the challenged portions should be stricken in their entirety.

II. STATEMENT OF THE FACTS

A. THE PARTIES

FRANCISCUS DYLAN ROSARIO ("Plaintiff") is a Plaintiff who has filed suit previously against CSAA's Insured, SUBHI ABDELHALIM ("Insured"). Plaintiff lost his jury trial, on the merits, when the jury rendered a defense verdict. Post trial, Plaintiff made multiple efforts to set aside the jury's verdict and this Court's Judgment. All those efforts were properly denied by this Court. Now Plaintiff files a new lawsuit seeking all the same recovery as before, plus more. (*See* RFJN **Ex. A**, *Plaintiff's FAC*)

Defendant CSAA INSURANCE EXCHANGE ("CSAA") is the insurance carrier for Insured, and under its duty to defend, CSAA provided insurance defense counsel in Plaintiff's underlying jury trial. Plaintiff now alleges that CSAA's litigation conduct, including by and through its trial defense counsel, constitutes a cause of action against CSAA.

CARBONE, SMITH & KOYAMA ("CARBONE") was the initially retained defense counsel in Plaintiff's underlying litigation. MICHAEL R. CHAMBERS ("CHAMBERS") was the handling defense attorney at CARBONE, pre-trial. CARBONE and CHAMBERS substituted out of the case, prior to Plaintiff's jury trial on the underlying litigation.

1 CSAA, CARBONE, and CHAMBERS all together, jointly, file this Motion to Strike.

2 **B. FACTUAL AND PROCEDURAL BACKGROUND**

3 This action arises from a prior lawsuit, Rosario v. Abdelhalim, Case No. CGC-21-594102, which
4 proceeded through discovery, motion practice, and jury trial, resulting in a defense verdict. (*See* RFJN
5 **Ex. B**, *Register of Actions, Rosario v. Abdelhalim*, Case No. CGC-21-594102).

6 Following that adverse result, Plaintiff filed the operative FAC, which not only reasserts claims
7 against CSAA’s insured SUBHI ABDELHALIM, but also newly names these moving Defendants and the
8 attorneys and law firm that defended the underlying action—Phillips, Spallas, and Angstadt, LLP, and its
9 attorneys (collectively, “Trial Defense Counsel”).

10 The FAC asserts a single cause of action seeking an “Independent Action in Equity to Set Aside
11 Judgment for Extrinsic Fraud.” However, the allegations are based entirely on Defendants’ and Trial
12 Defense Counsel’s conduct during the prior litigation, including discovery, evidentiary disputes, and
13 representations made to the Court.

14 Specifically, Plaintiff alleges that Defendants (and PSA) obstructed access to evidence—such as a
15 911 recording, body-worn camera footage, and CAD logs—and made purportedly misleading statements
16 regarding the possession and production of those materials. These same issues were addressed in the
17 underlying action through motions in limine and related proceedings, which the trial court ruled upon
18 prior to trial.

19 Notably, the FAC does not allege that Plaintiff was prevented from participating in the litigation
20 or presenting his case. To the contrary, all the materials Plaintiff identifies as “critical evidence” were
21 presented to the jury in Plaintiff’s underlying case, and the jury ultimately returned a defense verdict.

22 **1. The Underlying Litigation—Plaintiff Lost his Jury Trial by Defense Verdict**

23 The FAC’s allegations against CSAA and Defendant’s relate to Plaintiff’s belief that i) defense
24 counsel had disproportionate knowledge of underlying facts in the litigation, ii) that defense counsel made
25 misleading and false representations to the Court; and ii) Court reliance on these representations made
26 during proceedings impaired Plaintiff’s opportunity to present his case. The gravamen of the FAC’s
27 allegations swirl around the same issues in the underlying case, i.e. the weight of certain trial evidence
28 (911 calls, bodycam footage, and CAD logs). Plaintiff falsely claims that he was unable to present this

evidence at trial, due to alleged fraud which was “used to secure procedural and evidentiary rulings that excluded evidence, denied continuances, and deferred admission of critical materials.” (See FAC pg.19, lines 17-19.)

It is true that Defendant’s attorneys *did attempt* to exclude this evidence, however, the Court denied Defendant’s motions in limine targeting this evidence. (See RFJN **Ex. B**, *Register of Actions, Rosario v. Abdelhalim*, Case No. CGC-21-594102) (*Order Denying Defendant’s Motion in Limine No. 17*). Hence, Plaintiff was ultimately permitted to present this evidence to a jury, which “returned a verdict in favor of Defendant on April 25, 2025,” finding that Defendant Abdelhalim was not negligent by a 9-3 defense verdict. (See RFJN **Ex. C**, *Defendant’s Notice of Entry of Judgment, Rosario v. Abdelhalim*, Case No. CGC-21-594102); (FAC at pg. 18, lines 12-16.)

Each of the below claims is barred by California law as a collateral attack on a valid judgment and invalid as a matter of law for seeking to target protected activity.¹ Each of Plaintiff’s alleged damages are also legally irrelevant and not recoverable as they are based on an erroneous application of case law and a misstatement of the extrinsic fraud doctrine.

2. Plaintiff’s Claimed Items of Damage to Be Stricken

Plaintiff’s FAC claims a confusing and contradictory bevy of purported damages, none of which are supportable under California law in these circumstances. Additionally, the FAC disclaims “personal injury” damages in several places, then duplicitously seeks these very same damages. Plaintiff’s erroneous and duplicitous claims for damages below should all be stricken from the pleadings for being irrelevant, and not drawn or filed in conformity with the laws of this state:

a) Litigation Costs and Economic Injury (FAC, pg. 20: line 7):

- out-of-pocket record, evidence, and process costs caused by the fraud-on-the-court mechanism:
 - fees paid to obtain reporter’s transcripts, clerk’s transcripts and certified copies;
 - fees paid for copying and printing, exhibit creation, audio and video transcription, authentication costs, storage media, postage and courier;
 - fees paid for filing fees, and service fees;
 - expenses incurred in travel, parking, and mileage for hearings tied to the fraud dispute. (FAC, pg. 20: lines 7-11.)²

¹ Defendants have recently filed a Demurrer and a Special Motion to Strike under Code Civ. Proc. § 425.16 (Anti-SLAPP motion).

² Plaintiff’s FAC duplicitously claims in the same page that it does not seek attorney’s fees, reserving these for other proceedings. Notably, Plaintiff currently owes ~\$76,000 in court ordered costs from his underlying loss at trial.

- 1 (a) strike out any irrelevant, false, or improper matter inserted in any pleading.
2 (b) strike out all or any part of any pleading not drawn or filed in conformity with the laws of
3 this state, a court rule, or an order of the court.” (Code Civ. Proc. § 436)

4 Where pleadings are defective, “the defect may be raised by a demurrer or motion to strike or by
5 motion for judgment on the pleadings.” (*Coyne v. Krempels* (1950) 35 Cal.2d 257, 263.)

6 Here, the entirety of Plaintiff’s FAC, its principal legal theory, and each of Plaintiff’s alleged
7 damages fall squarely within this rule. First, Plaintiff’s proper legal remedy for his loss of his underlying
8 jury trial is an appeal. Second, Plaintiff’s legal contention of “extrinsic fraud” is not legally supportable.
9 And third, Plaintiff cannot recover any of his claimed items of damages, including: costs of litigation,
10 emotional distress damages.

11 **A. THERE IS NO BASIS FOR PLAINTIFF’S FRAUD BASED EQUITABLE CLAIMS**

12 The entire legal theory of the FAC is flawed. Plaintiff cannot establish the requisite “extrinsic
13 fraud” necessary for the relief he seeks. And even if he could, his proper legal recourse is an appeal—not
14 this subsequent lawsuit.

15 In the context of litigation “fraud usually arises when a party is denied a fair adversary hearing
16 because he has been ‘deliberately kept in ignorance of the action or proceeding, or in some other way
17 fraudulently prevented from presenting his claim or defense.” (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467,
18 471.) The type of extraordinary circumstances which can give rise to a claim for extrinsic fraud include:

19 Where the unsuccessful party has been prevented from exhibiting fully his case, by
20 fraud or deception practiced on him by his opponent, as by keeping him away from court,
21 a false promise of compromise; or where the defendant never had knowledge of the suit,
22 being kept in ignorance by the acts of the plaintiff; or where an attorney fraudulently or
23 without authority assumes to represent a party and connives at his defeat; or where the
24 attorney regularly employed corruptly sells out his client’s interest to the other side, --these,
25 and similar circumstances show that there has never been a real contest in the trial or
26 hearing of the case, are reasons for which a new suit may be sustained to set aside and
27 annul the former judgment or decree, and open the case for a new and a fair hearing.
28 (*Kulchar*, supra, 1Cal.3d at 471.)

29 Absent such extreme circumstances, “[r]elief is denied. . . if a party has been given notice of an
30 action and has not been prevented from participating therein. He has had an opportunity to present his
31 case to the court...” (*Kulchar*, supra, 1Cal.3d at 471.)

32 Here, Plaintiff had every opportunity to present his case to the Court and the jury, in his underlying
33 jury trial. Still, inexplicably, the FAC alleges extrinsic fraud. (*See FAC* pg. 20, line 26-pg. 21, line 14.)

1 Plaintiff strings together an elaborate and distorted rendition of evidentiary motions and hearings (*see*
2 *FAC* pg. 15, lines 2-28 through pg. 17, line 25,) and makes the conclusory assertion that these resulted in
3 his being “denied a fair adversary hearing” (*Kulchar, supra*, 1 Cal.3d at 471,) and that a logical inference
4 therefrom is “that there has never been a real contest in the trial or hearing of the case.” (*Ibid.*) Plaintiff
5 was granted the opportunity, despite proper attempts at exclusion, to present the very evidence that he
6 duplicitously states was excluded. (*See FAC* pg. 18, lines 3-15.) Despite Plaintiff’s strained recapitulation
7 of the facts of his underlying case, the reality is he presented all the evidence he sought and simply failed
8 to persuade the jury. He cannot state in good faith that proper, and privileged litigation conduct in the
9 underlying trial, means he was “prevented from exhibiting fully his case, by fraud or deception practiced
10 on him by his opponent”, nor can he say that “that there has never been a real contest in the trial or hearing
11 of the case.” (*Kulchar, supra*, 1 Cal.3d at 471.) Therefore, the Court should strike the entirety of the FAC,
12 as the entire thrust of the pleading is to seek relief based on a legally and factually unsupportable theory
13 of extrinsic fraud.

14 Moreover, and crucially, Plaintiff’s proper legal recourse for his perceived trial-level inequities is
15 an appeal. And indeed, Plaintiff’s appeal is pending. (*See Rosario v. Abdelhalim*, CA 1st Dist. Ct. of
16 Appeal, Case No. A173827.)

17 **B. THE FAC’S CLAIMED DAMAGES ARE IRRELEVANT, FALSE, IMPROPER AND**
18 **DO NOT CONFORM WITH THE LAWS OF THIS STATE**

19 The entire factual basis contained in the FAC is legally untenable because it targets Defendants
20 for their privileged conduct and communications under Civ. Code § 47(b)—amidst the judicial proceeding
21 of an underlying jury trial. Further, Plaintiff lacks standing to sue CSAA or its retained insurance defense
22 attorneys involved in the defense of the underlying lawsuit for the claims contained herein, including his
23 claims for compensatory damages. Furthermore, the specific items of damage listed in the FAC are simply
24 not recoverable for a bevy of reasons.

25 **1. The Absolute Litigation Privilege Bars All the FAC’s Claims for Damages**

26 Civ. Code § 47(b) provides in relevant part: A privileged publication or broadcast is one made .
27 . (b) In any (1) legislative proceeding, (2) judicial proceeding, (3) in any other official proceeding
28 authorized by law, or (4) in the initiation or course of any other proceeding authorized by law and
reviewable pursuant to Chapter 2...

1 “The only exception to the application of 47(2) to tort suits has been for malicious prosecution
2 actions.” (*Ribas v. Clark* (1985) 38 Cal. 3d 355, 364.) The privilege also “poses a clear bar to [an] action
3 insofar as it is based on. . . the tort of intentional infliction of emotional distress.” *Ibid*.

4 Here, all the conduct alleged in Plaintiff’s FAC arises from statements, filings, or other
5 communicative acts undertaken in connection with prior judicial proceedings.³ While Plaintiff attempts
6 to reframe the issue as sounding solely in equity, at its core the FAC is a rehashed, and more elaborate
7 rendition of his claims in his Amended Complaint For Damages and Injunctive Relief, Case No. CGC-
8 25-631802.⁴

9 Plaintiff has not alleged in the FAC any cause of action for malicious prosecution, nor could he do
10 so under these circumstances and facts alleged. As the party initiating both this lawsuit, and the failed one
11 which he seeks to relitigate here, Plaintiff is unable to assert malicious prosecution. Therefore, the
12 litigation privilege “poses a clear bar to [this] action insofar as it is based on . . . infliction of emotional
13 distress.” (*Ribas*, supra 38 Cal.3d at 364.) Accordingly, all portions of Plaintiff’s FAC related to damages
14 alleged to have been caused by Defendants’ underlying litigation conduct should be stricken pursuant to
15 Code Civ. Proc. § 436.

16 **2. Plaintiff Lacks Standing Against All Defendants to Assert any Claim, Including for**
17 **Damages**

18 Plaintiff lacks standing against all Defendant’s in their capacity as either the insurance carrier for
19 a third party, or as defense counsel for a third party insured—to whom Plaintiff lost at trial.

20 “As a general rule, a third party may directly sue an insurer only when there has been an assignment
21 of rights by, or a final judgment against, the insured.” (*Shaolian v. Safeco Ins. Co.* (1999) 71 Cal.App.4th
22 268.) Further, California courts have consistently held that an attorney cannot be sued by an adverse party
23 for that attorneys’ actions in representing their client, except for an action for malicious prosecution. (*See*,
24 *e.g.*, *Norton v. Hines* (1975) 49 Cal.App.3d 917; *Omega Video v. Superior Court* (1983) 146 Cal.App.3d
25 470.)

26 Here, Plaintiff obtained neither an assignment from, nor judgment against, the Insured, Subhi

27 ³ Defendants have concurrently filed a Special Motion to Strike under Code Civ. Proc. § 425.16.

28 ⁴ Along with an appeal, Plaintiff filed a separate claim, Case No. CGC-25-631802, seeking to relitigate substantially similar issues related to privileged litigation conduct.

1 Abdelhalim. Plaintiff is a third party to Defendant, and had no direct relationship with it. Plaintiff seeks
2 only to sue Defendants for their role in the defense of the insured, through trial. Beyond this, there are no
3 cognizable allegations that Defendant's made any specific misleading representations to the Court.
4 Plaintiff now seeks to repackage his underlying damages claims (which he lost at trial) against the original
5 Defendant's insurance carrier and handling defense attorneys. This is legally improper and should be
6 stricken.

7 **3. Plaintiff is Collaterally Estopped from Seeking Recovery on the Same Damages**
8 **Sought in his Underlying Jury Trial—Which he Lost.**

9 Plaintiff is estopped from simply attempting to relitigate all the same damages that he failed to
10 obtain at his underlying jury trial.

11 "A collateral attack is an attempt to avoid the effect of a judgment or order made in some other
12 proceeding." (*F.E.V. v. City of Anaheim* (2017) 15 Cal.App.5th 463, 471 (*quoting Rico v. Nasser Bros.*
13 *Realty Co.* (1943) 58 Cal.App.2d 878, 882.) "An attack in a second action on an earlier judgment is
14 collateral." (*Ibid.*) (citing *Wouldridge v. Burns* (1968) 265 Cal.App.2d 82, 84.) "A judgment of a court of
15 general jurisdiction can only be set aside on collateral attack if the judgment is void on the face of the
16 record." (*Wouldridge, supra*, 265 Cal.App.2d at 84.) Further, "collateral estoppel precludes relitigation
17 of issues argued and decided in prior proceedings." (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 826.)
18 Finally, "[t]here are no maxims of the law more firmly established, or of more value in the administration
19 of justice, than [those]...designed to prevent repeated litigation between the same parties in regard to the
20 same subject of controversy." (*U.S. v. Throckmorton* (1878) 98 U.S. 61, 65 (*emphasis added*).)

21 The entire purpose of the present lawsuit is to relitigate the same issues presented in the underlying
22 case—including seeking recovery of all the same damages Plaintiff was denied in that case. Despite
23 repeatedly and duplicitously disclaiming "general personal-injury damages, ...or attorney's fees" (*See*
24 *FAC*, pg. 19, lines 4-5, pg. 26, lines 3-4,) Plaintiff now seeks those same damages but somehow transforms
25 them by describing them as "Equitable Monetary Relief (Ancillary and Restitutionary)", and "allowable
26 costs of suit." (*See FAC* pg. 27, lines 19-25.) This does not change the nature of the relief sought or the
27 fact that Plaintiff seeks compensation for the same harms alleged in his failed previous litigation.

28 Plaintiff also seeks additional benefit by way of this lawsuit in the form of vacatur. This is nothing

1 more than an “attempt to avoid the effect of a judgment or order made in some other proceeding.” (*F.E.V.*
2 *supra*, 15 Cal.App.5th at 471.). Indeed, the effect of the prior judgment was a 9-3 jury verdict for the
3 defense, and approximately \$76,000 in costs imposed on Plaintiff for his loss at trial. Plaintiff’s effort to
4 shift these costs back on Defendants in this subsequent lawsuit is a legal ruse.

5 **4. Plaintiff Was Not the Prevailing Party at the Underlying Jury Trial and Cannot**
6 **Therefore Seek Costs**

7 In order to be entitled to compensatory damage or prevailing party costs, Plaintiff must have
8 prevailed at trial.

9 He did not.

10 Under Code Civ. Proc. § 1032, the term “Prevailing party” includes the party with a net monetary
11 recovery...the “prevailing party” shall be as determined by the court, and under those circumstances, the
12 court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties.
13 Furthermore, “a prevailing party is entitled as a matter of right to recover costs in any action or
14 proceeding.”

15 Here, the Plaintiff’s alleged damages that are simply his costs in litigating the underlying jury trial
16 cannot be recovered and should be stricken. Plaintiff was not “the prevailing party” in his underlying
17 lawsuit. To the contrary, he lost, and carries significant liability for attorney’s fee’s and costs borne by
18 CSAA in the defense of Plaintiff’s meritless, prior lawsuit.

19 **IV. CONCLUSION**

20 Based upon the foregoing facts and authorities, moving party respectfully requests that the court
21 issue an order striking the complaint in its entirety as specified in this noticed motion and in the proposed
22 order submitted herewith.

23 Dated: April 22, 2026

PORTER SCOTT, A PROFESSIONAL CORPORATION

24 *Tyler J. O’Connell*

25 By _____

26 Chad S. Tapp
27 Tyler J. O’Connell
28 Attorneys for Defendants,
CSAA INSURANCE EXCHANGE,
CARBONE, SMITH & KOYAMA, and
MICHAEL R. CHAMBERS

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 22, 2026, I served the following document: **MEMORANDUM OF POINTS**
7 **AND AUTHORITIES IN SUPPORT OF MOTION TO STRIKE PLEADING**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

12 Addressed as follows:

13 **PLAINTIFF, IN PRO PER**

14 Franciscus Dylan Rosario
15 7624 Melody Drive
16 Rohnert Park, CA 94928
17 soltrinox@gmail.com

18 I declare under penalty of perjury under the laws of the State of California that the foregoing
19 is true and correct. Executed on Sacramento, California on April 22, 2026.

20 *Monique Schubert*
21 Monique Schubert